IN THE HIGH COURT OF ORISSA AT CUTTACK
WPC (OAC) No.1295 of 2018

Subrat Kumar Singh .... ***Petitioner***

-versus-

State of Odisha and Ors. .... ***Opposite Parties***

Advocates appeared in the case through Hybrid Mode**:**

For Petitioner : *Mr. Subhransu Bhusan Mohanty, Adv.*

For Opposite Parties. : *Mr. H.K. Panigrahi, ASC*

CORAM:
Dr. JUSTICE S.K. PANIGRAHI

DATE OF HEARING:-05.04.2023
DATE OF JUDGMENT: -03.07.2023

Dr. S.K. Panigrahi, J.

1. In this Writ Petition, the Petitioner has made a prayer to quash the order dated 19.03.2018 passed by the Opposite Party No.3/ Additional District Magistrate, Balasore imposing certain penalty on him. He further seeks a direction from this Court to the Opposite Parties to regularize his period of suspension with admissible pay, increments and consequential benefits.

I. FACTS OF THE CASE:

2. The fact of the case is that the Petitioner is now serving as Revenue Inspector in the office of Tempo under Jaleswar Tahasil. Since his date of appointment, he has been discharging

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the duties to the utmost satisfaction of the authority. No adverse entry was made against his name. While he was continuing under Nilagiri Tahasil, series of transfer orders were passed against him within a period of three months. All the transfer orders have been issued by the Tahasildar, Nilagiri who is not competent and has no authority to pass such transfer orders as per Odisha District Revenue Service (Method of Recruitment and Conditions of Service) Rules, 1983. As amendment from time to time, the Collector is the designated and the transferring, appointing and Disciplinary authority. In contravention of such Rules, the Tahasildar, Nilagiri has passed four transfer orders within a period of three months. One transfer orders have been passed on 31.12.2012, 22.01.2015, 02.04.2015 and 06.04.2015. The series of such transfer orders issued by the Tahasildar, Nilagiri has harassed the Petitioner who was constrained to obey it in an official indisposition.

3. The Petitioner being harassed by the series of transfer approached the Tahasildar, Nilagiri to release the order of transfer. However, the Tahasildar intimated to the Collector, Balasore against the Petitioner to take disciplinary action. Then the Collector without any preliminary enquiry and without any prima facie allegation, placed the Petitioner under suspension on 17.04.2014 under Rule-12 of O.C.S. (C.C.A.) Rules, 1962 by

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incorporating in the said order alleging negligence in duty, misbehavior and misuse of official position.

4. The Petitioner has filed a petition before the Collector on 22.4.2015 to revoke the order of suspension. When the revocation petition dated 22.04.2015 of the Petitioner was pending for consideration, the Collector, Balasore framed memorandum of charges and statement of imputation along with memo of evidence on 30.05.2015 and vide letter dated 11.08.2015 asked the Petitioner to file written statement of defence within a period of 30 days from the date of receipt of memorandum.

5. Challenging the order of suspension dated 27.04.2015, the Petitioner had filed O.A. No.1647 (C) of 2015. The same was dismissed on 26.10.2016 with the observations as follows:

> *"Hence, in view of the above reasons, the O.A. is dismissed, but the respondents are directed to initiate the Departmental Proceeding within one month if not already initiated and serve the copy of the charge memo to the applicant and complete the departmental proceeding as early as possible preferably within 6 months. Besides this, as per that guide-lines, every month the suspension is to be reviewed and the applicant is at liberty to act as per Rule-12(5) of OCS (CC&A) Rules.*
> *Xx xx xx xx"*

6. Thereafter, the Additional District Magistrate, Balasore by the order of the Collector, Balasore considered the revocation

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petition of the Petitioner and vide order dated 30.06.2016 recalled the order of suspension and reinstated him in service and posted him at Jaleswar, Tahasil. After reinstatement of the Petitioner, the Sub-Collector, Nilagiri being the Enquiring Officer of his proceeding, examined and Cross examined the documents and witnesses with reference to the Article of Charges. On conclusion, it was found by the Enquiring Officer that the Petitioner has not been found guilty of the Charges and finally exonerated him by order dated 27.07.2017. In spite of the order of exoneration, the Additional District Magistrate being authorized by the Collector imposed punishment against the Petitioner vide order dated 19.03.2018 which are as follows:-

(i) One annual increment shall be stopped without cumulative effect.

(ii) The unauthorized period of leave is treated as leave due.

7. Challenging the order dated 19.03.2018, the Petitioner has filed this Writ Petition contending that the order of disciplinary authority is palpably wrong and erroneous in view of the fact that Enquiry Officer has not suggested any penalty due to want of evidence against him in reference to Article of charges which could not be established. On careful consideration of evidence, statement and fact, the Enquiry Officer did not find any fault with the Petitioner except the warning that he should not be

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careless and ultimately submitted the report in favour of the Petitioner by exonerating him from all charges.

II. SUBMISSIONS ADVANCED ON BEHALF OF THE PETITIONER:

8. Learned counsel for the Petitioner submitted that the Petitioner being harassed by the series of transfer objected before the Tahasildar for such administrative autocracy. However, ill feelings grew among them and the Tahasildar persuaded the Collector to take administrative action against him for other means and grounds. However, without prima facie getting satisfied about the conduct of the Petitioner, the Collector placed him under suspension on 17.04.2015 by fixing the Head Quarter at Sadar Tahasil, Balasore.

9. It was submitted that Collector has not specifically mentioned the type and extent of negligence in duty, misbehavior and misuse of official position. The Rule-12 of the C.C.A. Rules prescribes the procedure to place an employee under suspension. It is further mentioned in the said Rules that before placing an employee under suspension, the Disciplinary Authority is required to hold the preliminary enquiry regarding prima facie nature of allegation. The procedural lapses done by the Collector has made the suspension order revocable.

10. In this connection, the Petitioner has filed a petition before the Collector on 22.4.2015 seeking revocation of the order of

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suspension. When the revocation petition dated 22.04.2015 of the Petitioner was pending consideration, the Collector, Balasore framed memorandum of charges and statement of imputation along with memo of evidence on 30.05.2015 and vide letter dated 11.08.2015 asked the Petitioner to file written statement of defence within a period of 30 days from the date of receipt of memorandum.

11. However, the Additional District Magistrate, Balasore by the order of the Collector, Balasore considered the revocation petition of the Petitioner and vide order dated 30.06.2016 recalled the order of suspension and reinstated him in service and posted him at Jaleswar, Tahasil. After reinstatement of the Petitioner, the Sub-Collector, Nilagiri being the Enquiring Officer of his proceeding, examined and cross examined the documents and witnesses in reference to the Article of Charges. On conclusion, the Petitioner was not found guilty by the Enquiring Officer of the Charges and finally exonerated him by order dated 27.07.2017. In spite of the order of exoneration, the Additional District Magistrate being authorized by the Collector imposed punishment against the Petitioner vide order dated 19.03.2018 imposing penalty as stated supra.

12. Once the report of Enquiry Officer is silent and does not cast any stigma against his character, the disciplinary authority without application of mind has imposed punishment which is

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too harsh and arbitrary only to put the Petitioner in a blemish record. The Disciplinary Authority without calling for explanation from the delinquent, only on the basis of report of Enquiry Officer, which is a statutory requirement, and not considering the materials on record, imposed punishment unilaterally on the Petitioner which is not permissible under the CCA Rules. Hence, the order of the Disciplinary Authority is liable to be quashed. Moreover, before imposition of punishment, the Petitioner has not been informed in writing about proposed action to be taken against him in awarding some punishment and no opportunity of hearing has been given to the Petitioner which is mandatory under Rule-16 of OCS (CCA) Rules. All the instructions of the Government flown under Article 311(2) have not been followed. So, due to procedural lapses and infirmity, the order dated 19.03.2018 of disciplinary authority is unsuitable in law. Hence, the same is liable to be quashed.

III. **SUBMISSIONS ON BEHALF OF THE OPP. PARTIES 2 & 4/ STATE:**

13. On the other hand, learned counsel for the Opposite Party Nos.2 and 4/ State submitted that the Petitioner was serving as Revenue Inspector of Santaragadia under Nilgiri Tahasil. While he was serving as such placed under suspension vide order No.

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12/Estt. dated 17.04.2015 for his negligence in duties, disobedience of order, misbehavior and misuse of official position.

14. It was further submitted that that an allegation was made against the Petitioner which was enquired into. It was found that the Petitioner had misused his position by initiating encroachment case against the person in possession of a patch of land for which he was transferred to RI office Kans vide order No.14 dated 31.12.2014. The Petitioner had not responded to the instructions and did not join. Subsequently, on rearrangement, he was transferred and posted to said R.I. circle vide order No.29 dated 02.04.2015. The petitioner was instructed to hand over charges vide letter No.1607 dated 06.04.2013, but he did not pay any heed to it. Rather, he misbehaved the authority i.e. Ex-Tahasildar, Nilgiri (O.P. No.5). Apart from this, during his incumbency as R.I., Santaragadia, he had neglected his duties towards disposal of Mutation Cases. Out of total 438 mutation cases, 215 cases were pending for more than one year, 173 cases were pending for more than six months and 150 cases were pending for more than three months. For the above lapses, the Petitioner was called for explanation vide letter Nos.1181 dated 13.03.2015 and 1572 dated 04.04.2015. However, the Petitioner did not respond to the same for which he was placed under suspension vide order No.12/Estt. Dated 17.04.2015 and

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simultaneously charges was framed against him vide D.P. No.1853/Estt. dated 11.08.2015.

15. The Petitioner had submitted written statement in his defence and the Sub-Collector had been appointed as inquiring officer under Rule 15(4) of OCS (CC&A) Rule 1962 and the Tahasildar, Nilgiri was appointed as Marshalling Officer under Rule 15(5) of said Rules.

16. The Inquiring Officer i.e. the Sub-Collector, Nilgiri had enquired in to the charges giving reasonable opportunity to the Petitioner and submitted report on 27.02.2017. The inquiry report reveals that charges of negligence duty and disobedience order have been partly established and suggested to exonerate him from the charges and to issue warning not to be careless at any point of his service career and to perform his duty with utmost sincerity and commitment.

17. The Collector being the disciplinary authority disagreed with the suggestion of the inquiring officer with regard to exonerate him from charges and to issue warning. However, based on the allegation of Sarpanch, Shyamsundarpur G.P and public, the disciplinary authority inclined to impose punishment to stop one annual increment without cumulative effect and to treat his unauthorized period (suspension period) as leave due. The Petitioner was served with a copy of enquiry report and show cause under Sub- Rule 10(i)(b) of Rule 15 of OCS(CC&A) Rules,

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1962 on proposed penalty as to why the above punishment was not to be imposed on him vide Letter No.2736/ Estt. dated 18.12.2017 of the Collector, Balasore.

18. Since charges of negligence and disobedience of order has partly established during the enquiry by the Sub-Collector, the Collector, being the disciplinary authority, has the right to impose penalty differing the suggestion of the Inquiry officer which is just and proper. In view of the above fact and circumstances, he submitted that the Writ Petition being devoid of merit is liable to be dismissed.

IV. CONCLUSION AND ORDER:

19. Learned counsel for the Petitioner has contended that After reinstatement of the Petitioner, the Sub-Collector, Nilagiri being the Enquiring Officer of his proceeding, examined and Cross examined the documents and witnesses in reference to the Article of Charges. On conclusion, the Petitioner was not found guilty by the Enquiring Officer of the Charges and finally exonerated him by order dated 27.07.2017. In spite of the order of exoneration, the Additional District Magistrate being authorized by the Collector imposed punishment against the Petitioner vide order dated 19.03.2018 imposing penalty. He further contended that The Disciplinary Authority without calling for explanation from the delinquent, only on the basis of

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report of Enquiry Officer, which is a statutory requirement, and not considering the materials on record, imposed punishment unilaterally on the Petitioner which is not permissible under the CCA Rules.

20. Per contra, learned counsel for the State has clarified that during the petitioner's incumbency as R.I., Santaragadia, he had neglected his duties towards disposal of Mutation Cases. Out of total 438 mutation cases, 215 cases were pending for more than one year, 173 cases were pending for more than six months and 150 cases were pending for more than three months. For the above lapses, the Petitioner was called for explanation vide letter Nos.1181 dated 13.03.2015 and 1572 dated 04.04.2015. However, the Petitioner did not respond to the same for which he was placed under suspension vide order No.12/Estt. dated 17.04.2015 and simultaneously charges was framed against him vide D.P. No.1853/Estt. dated 11.08.2015.

21. The Inquiring Officer i.e. the Sub-Collector, Nilgiri had enquired in to the charges giving reasonable opportunity to the Petitioner and submitted report on 27.02.2017. From the inquiry report it revealed that charges of negligence duty and disobedience order was partly established and suggested to exonerate him from the charges and to issue warning not to be careless at any point of his service career and to perform his duty with utmost sincerity and commitment.

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22. The Collector being the disciplinary authority disagreed with the suggestion of the inquiring officer with regard to exoneration of the Petitioner from charges and issuance of warning. However, based on the allegation of Sarpanch, Shyamsundarpur G.P and public, the disciplinary authority inclined to impose punishment to stop one annual increment without cumulative effect and to treat his unauthorized period (suspension period) as leave due. The Petitioner was served with a copy of enquiry report and show cause under Sub- Rule 10(i)(b) of Rule 15 of OCS(CC&A) Rules, 1962 on proposed penalty as to why the above punishment was not to be imposed on him vide Letter No.2736/ Estt. dated 18.12.2017 of the Collector, Balasore.

23. It is pertinent to point out that when the Disciplinary Authority takes the assistance of an enquiry officer to conduct the enquiry into the charges and if any findings adverse to the interests of the charged official are recorded, then he has to be furnished with a copy of the enquiry officer's report, so as to enable him to make his further representation, on the findings of the enquiry officer, to the disciplinary authority and at that stage, when the Disciplinary Authority acknowledges the further representation, then he has to apply his mind and consider as to whether, the facts on the basis of which, disciplinary action has been taken, have been established, whether the charged official has been

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provided with sufficient opportunity to defend the disciplinary proceedings, whether the procedure contemplated under the rules have been followed, whether there is sufficient ground to proceed further with the disciplinary proceedings, and then, he can record his final findings on the charges to remit the matter to the enquiry officer to rectify any procedural defect noticed with regard to the above aspects. However, if the enquiry officer records the findings in favour of the delinquent officer, holding that the charges as not proved, with or without any recommendation for exoneration and if the Disciplinary Authority disagrees with those findings, then, it is mandatory on the part of the Disciplinary Authority to form a tentative opinion for disagreeing with the findings of the enquiry officer. But, if the Disciplinary Authority, instead of recording a tentative opinion with reasons, for disagreement, proceeds to hold him guilty of the charges and thereafter, issue notice to the charged official, then it is nothing but a post-decisional hearing. It should also be borne in mind that principles of natural justice require that before the disciplinary authority records his final finding on the charges, he has to examine various aspects stated supra. But, without examining the same, if the Disciplinary Authority arrives at a final finding on the charges as proved, and thereafter, call upon the charged official to offer his further representation on the finding and also on the procedural

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aspects, then it is only an empty formality, for the reason, there is not only a post decisional hearing on the findings, but it is also a blot on the procedural aspect. In the case at hand, the Disciplinary Authority has not only recorded his reasons for disagreeing with the findings of the enquiry officer, but has also arrived at the conclusion, holding the charges as proved.

24. In ***P.Govindan v. State of Tamil Nadu***[1], a Division Bench has considered a case as to whether recording a conclusion on the charges, at the stage of issuance of notice, would cause prejudice to the charged official and whether it satisfies principles of natural justice. In the reported judgment, the Disciplinary Authority, after differing with the enquiry officer, issued a show cause notice to the abovesaid official with a pre-determined mind, holding that the charges as proved. While testing the correctness of the abovesaid order, the Division Bench of this Court held that:

> *"12. The Supreme Court in the case of* ***Punjab National Bank and Ors. v. Kunj Behari Misra and Ors.***[2]*, held that in a departmental proceedings, what is of ultimate importance is a finding of the disciplinary authority. In the context of such seriousness, the Supreme Court held that principles of natural justice would demand that the disciplinary authority, which is deciding against the delinquent officer, must give an opportunity to rebut*

[1] 2006 (1) MLJ 624 (Madras High Court)
[2] (1998) II LLJ 809 SC

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the view taken, differing from that of the enquiry officer. It further held that whenever the disciplinary authority disagreed with the enquiry authority, then, it must record its tentative reasons for such disagreement and give the delinquent officer an opportunity to represent, before it records its findings. The judgment of the Supreme Court applies in all force to the case on hand, considering the fact that the first respondent's notice dated 11.5.2001 is silent on the reasons for taking a different view from that of the enquiry officer. As submitted by the learned counsel for the petitioner, it seemed to carry a conclusion premature that all five charges are held as proved. With such pre-emption on the conclusion, the very purpose of issuing a notice appears to be an empty formality. The purpose of issuing a notice is for enabling the delinquent officer an opportunity to persuade the disciplinary authority to accept the findings of the enquiry officer. Hence, the effectiveness of an opportunity is an absolute necessity, which must be patent even on the face of reading the notice, so that it would enable the delinquent officer to counter all the allegations, before the disciplinary authority takes further action, which may be prejudicial to the delinquent officer. The recording of a conclusion even at the notice stage is premature to give an impression to a delinquent officer that the entire exercise is a mere ritual before the ultimate order is passed. In the light of the facts found by the enquiry officer and the total absence of any material disclosed to form the basis for a different conclusion, we are constrained to accept the plea of the petitioner to set aside the order dated 11.5.2001."

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25. In the light of the aforesaid discussion and the cases cited hereinabove, this Court hereby quashes the order dated 19.03.2018 passed by the Opposite Party No.3/ Additional District Magistrate, Balasore imposing certain penalty on the Petitioner. This Court hereby directs the Opposite Party No.3 to provide the Petitioner with the right of fair hearing and prepare the subsequent order in accordance to law. The entire process be completed within three months from today.

26. Accordingly, this Writ Petition is disposed of.

(Dr. S.K. Panigrahi)
Judge

Orissa High Court, Cuttack,
Dated the 3rd July, 2023/B. Jhankar

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